

(*Owens v. Colfax* (1986) 184 Cal.App.3d 544, 547–48.) The causation allegation depends on the inadequately pleaded incompetence element and is correspondingly deficient.

3rd Cause of Action Negligent Hiring, Supervision and Retention of Unfit Employees:

Negligent hiring, retention, and supervision is a recognized direct-liability tort in California. (*C.A. v. William S. Hart Union High School District* (2012) 53 Cal.4th 861.) The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836-837.) It requires that the employee was unfit or incompetent for the work assigned, that the employer knew or should have known hiring or retaining the employee created a particular risk or hazard, that the particular harm materialized, and that the employer's negligent hiring, retention, or supervision was a proximate cause of the injury. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal. App. 4th 790.) Prior notice of a specific dangerous propensity, not generalized carelessness, is what makes later harm foreseeable. (*Conti v. Watchtower Bible & Tract Society of New York, Inc.* (2015) 235 Cal. App.4th 1214.)

The Complaint alleges only that Jane Doe was unfit or incompetent to perform the work for which she was hired, that Defendants knew or should have known of her unfitness, and that her unfitness created a particular risk. It does not describe what made her unfit, nor does it allege any pre-hire or post-hire facts from which actual or constructive notice could be inferred. The bare element-tracking allegations are conclusory rather than ultimate facts. Information-and-belief and superior-knowledge principles can reduce required detail where personnel information lies largely with Defendants, but they do not eliminate the requirement of some factual predicate for unfitness and notice. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531.)

Demurrer as to the 1st Cause of Action OVERRULED.

Demurrer as to the 2nd and 3rd Causes of Action SUSTAINED with leave to amend.

Plaintiff to file an amended complaint within 15 days.

Case Management Conference confirmed for 9.01.26.

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CASE #	CASE NAME	HEARING NAME
CVPS2603656	JAMES VS DESERT MOBILE HOMES LLC	HEARING RE: ELIGIBILITY OF WAIVER OF COURT FEES AND COSTS AS TO DAVID JAMES

Tentative Ruling: No tentative ruling. A hearing shall be conducted.